



United States Department of the Interior

INTERIOR BUSINESS CENTER

Washington, DC 20240

LIMITED-SOURCES JUSTIFICATION

**AUTHORITY: Federal Acquisition Regulation (FAR) 8.405-6,
and 40 United States Code (U.S.C.) 501**

Solicitation Number 44003461

This acquisition is conducted under the authority of the Multiple Award Schedule Program.

1. Identification of the agency and contracting activity, and specific identification of the document as a “Limited-Sources Justification.”

Department of the Interior (DOI), Interior Business Center (IBC), Acquisition Services Directorate (AQD), Division 5, on behalf of the Office of Environmental and Policy Compliance (OEPC).

2. Nature and/or description of the action being approved.

This limited source justification is to make a sole source logical follow-on order to the current contractor on order 140D0422F0177. The new Order will be against existing Blanket Purchase Agreement (BPA) issued against the General Services Administration (GSA) Multiple Award Schedule (MAS). The BPA number/GSA MAS Number is 140D0423A0072/47QRAA20D007E. The contractor considered for this requirement is:

BB&E, Inc.

235 E. Main St, Ste 107, Northville, MI 48167-2661

SAM UEI: JCHUL8M1HHK5

POC: Naila Hosein, nhosein@bbande.com, 248.378.8081

BB&E possesses the requisite knowledge to sustain the essential services required by OEPC.

3. A description of the supplies or services required to meet the agency’s needs (including the estimated value).

OEPC requires technical support in evaluating data quality objectives, reviewing technical documents, assisting in developing cleanup program guidance, and formulating recommendations on approaches for cleanup. These services are to support the Central Hazardous Materials Fund (CHF) which provides funding to the OEPC and DOI Bureaus to remediate contamination on Department managed lands. In most cases bureaus oversees the project management of the remediation, but at times, Bureau project staff might need technical support as provided by this procurement. The Order is planned to be twelve months from date of award with two twelve-month option periods as well as the option of exercising FAR 52.217-8 clause up to six months.

Period of Performance and Price

Base: 12 Months--2/25/2025 to 2/24/2026

OP1: 12 Months--2/25/2026 to 2/24/2027

OP2: 12 Months--2/25/2027 to 2/24/2028

FAR 52.217.8--up to 6 months

Total BPA Order Value:

4. The authority and supporting rationale (see FAR 8.405-6(a)(1)(i) and (b)(1)) and, if applicable, a demonstration of the proposed contractor’s unique qualifications to provide the required supply or service.

FAR 8.405-6(a)(1)(i)(C) – In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not previously issued under sole-source or limited-sources procedures.

The original order (140D0422F0177) was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order was not previously issued under sole-source or limited-sources procedures.

There are multiple contributing factors to support the logical follow-on including BB&E's unique qualifications:

- Transitioning with the same contractor offers several advantages, leading to minimal disruption. Since BB&E is already familiar with the current requirement, its objectives, and the working environment, there is inherently less learning curves involved. They understand the intricacies of the tasks and can continue the tasks without significant adjustments.
- BB&E has the expertise and knowledge relevant to the work being completed through CHF program. They have intricate knowledge of the systems and processes associated with that work.
- Utilizing the same contractor, there is an expectation of consistent quality in deliverables. BB&E has a positive track record of performance, and the Government can rely on their expertise and capabilities to maintain those standards.
- The continuity of services utilizing the same contractor helps to ensure that knowledge and expertise are retained. Key personnel who have been working the requirement can continue their roles which minimizes the impact of any potential turnover or knowledge gaps.
- Given that BB&E is the current contractor and has a positive Contractor Performance Assessment Rating (CPARS), they have demonstrated the unique expertise and experience of providing the services under this requirement.

5. A determination by the ordering activity Contracting Officer (CO) that the order represents the best value consistent with FAR 8.404(d).

The CO determines that the anticipated price(s) will be fair and reasonable based on the current GSA Schedule with BB&E having been completed and awarded amongst GSA Schedule holders. In accordance with the FAR 8.404(d), GSA has already determined the rates under Schedule contracts to be fair and reasonable. In addition, the rates on the GSA Schedule have been previously determined fair and reasonable based on competition at time of award. The CO will request additional discounts from the awarded rates with the order level Request for Quotation (RFQ).

Additionally, the CO will determine if the quoted rates and labor mix represent the best value and is in the best interest of the Government. It is expected that the rates will continue to be fair and reasonable in comparison to the current, GSA published rates, and previously offered discounts from the BPA.

6. A description of the market research conducted among schedule holders and the results, or a statement of the reason market research wasn't conducted.

While Market Research demonstrates the ability for competition, based upon the prior competition of the current order, it is not appropriate for this acquisition.

The necessity for the sole source relates to familiarity with the specific Government program and systems. Due to having conducted work on the prior order (140D0422F0177 which was competed), BB&Es familiarity environmental compliance tracking programs, Federal Environmental Laws and OEPCs internal systems are integral for ensuring a smooth transition and not having a lapse in service. Additionally, the transition to another vendor would result in a steep learning curve and loss of institutional knowledge. Due to their extensive knowledge and more than satisfactory past performance with the government, a sole source

requirement provides the government with the least amount of risk and a logical follow on to fulfill OEPCs needs.

7. Any other facts supporting the justification.

The request for quote will not be released on eBuy. This order will be sent directly to the proposed sole source vendor, BB&E, utilizing an established BPA. Per FAR 8.405-6(a)(2), the Government will post the justification on SAM.gov.

8. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for supplies and services is made.

OEPC will continue to monitor the commercial market for alternatives to awarding this as a sole source requirement. Additionally, the agency will continue to post notices as this service expires to gauge interest from other companies. The CO will work with OEPC to ensure competition.

9. The ordering activity CO certification that the justification is accurate and complete to the best of the CO's knowledge and belief.

I certify this justification is accurate and complete to the best of my knowledge and belief.

10. Evidence that any supporting data that is the responsibility of technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for limited sources) and which form a basis for the justification have been certified as complete and accurate by the technical or requirements personnel.

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I certify the technical data which forms a basis for this justification is complete and accurate and meet the Government's minimum needs.

11. For justifications under 8.405-6(a)(1), a written determination by the approving official identifying the circumstance that applies.

FAR 8.405-6(a)(1)(i)(C) – In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA must not have been previously issued under sole-source or limited-sources procedures.

12. Reviews and Approvals

Concur

Approve

